

		Here, Mr. Cho has submitted a declaration explaining the reasons he did not timely file an answer to the plaintiff's complaint. The Court finds that Mr. Cho's mistake was the result of his excusable neglect. In addition to submitting evidence of his mistake, Cho has submitted a proposed answer as required. While plaintiff argues Mr. Cho's declaration is not to be believed and that sanctions are appropriate, based on the Court's review of the pleadings in this case and the parties' briefs, the Court disagrees. The Court does not find that either a penalty, sanction or attorney's fees are appropriate under Section 473(c). Accordingly, the motion is GRANTED and Mr. Cho is ORDERED to file the proposed answer attached as Exhibit A to ROA 34 within 5 days. <i>Mr. Cho is ORDERED to give notice.</i>
4.	Jergensen v. NAHS Holding, Inc. 24-1411114	Before the Court is a motion by Defendants NAHS Holding, Inc., NAHS SouthEast, Inc., Mark Walton and Michael Moore to continue the trial. The motion is GRANTED, in part, as set forth herein. "Although continuances of trials are disfavored, each request for a continuance must be considered on its own merits. The court may grant a continuance only on an affirmative showing of good cause requiring the continuance." (<i>Rule 3.1332(c)</i>.) "A motion for continuance is addressed to the sound discretion of the trial court." (<i>Oliveros v. County of Los Angeles</i> (2004) 120 Cal. App. 4th 1389, 1395.) A "trial court may not refuse to hear a summary judgment motion filed within the time limits of section 437c." (<i>Sentry Ins. Co. v. Superior Court</i> (1989) 207 Cal.App.3d 526, 529 [trial court erred in refusing to hear timely filed motion for summary judgment by denying moving party's motion for order shortening time and motion for continuance of trial date].) Here, the defendants have filed a motion for summary judgment within the time limits of §437c which requires a motion to be heard more than 30 days before trial. (<i>CCP §437c(a)(3)</i>.) If not for the congestion of the Court's calendar, the motion was filed within sufficient time to be heard on July 23, 2026, which was more than 30 days before the August 24, 2026 trial date. However, the motion for summary judgment is scheduled for October 22, 2026. The Court finds good cause to continue the trial until after the pending motion for summary judgment. Accordingly, the Court will GRANT the Defendants' request and CONTINUE the August 24, 2026 trial to November 30, 2026 at 9:00 a.m. in Dept. C20. All dates will be tied to the new trial date. <i>Defendants shall give notice.</i>
5.	Gome z v. Raines	(Case dismissed)